

from a good faith mistake, inadvertence, or other excusable neglect”. (See *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, at 312.) A party’s willful nonperformance, gross negligence, or fraudulent behavior constitutes a waiver of arbitration.

Next, Defendant has not shown that it will suffer irreparable injury if litigation proceeds. Defendants’ “irreparable injury” showing is entirely conclusory and is based on the normal incidents and costs of litigation. Further, granting a stay would substantially harm Plaintiff, who has already been subjected to delays and procedural maneuvering by Defendant. Finally, the public interest here favors denying the motion because allowing Defendant to halt the litigation through an appeal of an arbitration denial would undermine the stated purpose of the senate bill that amended CCP § 1294(a), Sen. Bill No.365.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502170	LAKEVIEW LOAN SERVICING, LLC VS FUENTES	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

GRANT

Dismissals of January 5, 2026, are set aside.

Matter is set for a Case Management Conference on August 5, 2026, at 8:30am, D-4.